

SENATE BILL 525

By Rose

AN ACT to amend Tennessee Code Annotated, Title 2;
Title 5; Title 6; Title 7 and Title 20, Chapter 18,
relative to ballot measures.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 20-18-101, is amended by deleting subsection (a) and substituting instead:

(a)

(1) A civil action in which the complaint meets each of the following criteria must be heard and determined by a three-judge panel pursuant to this chapter:

(A) Challenges the constitutionality of:

(i) A state statute, including a statute that apportions or redistricts state legislative or congressional districts;

(ii) An executive order; or

(iii) An administrative rule or regulation;

(B) Includes a claim for declaratory judgment or injunctive relief;

and

(C) Is brought against the state, a state department or agency, or a state official acting in their official capacity.

(2) A civil action in which it is alleged that a proposed charter amendment ordinance that is to be submitted to qualified voters at an election is in violation of the Constitution or state law must be heard and determined by a three-judge panel pursuant to this chapter.

SECTION 2. Tennessee Code Annotated, Section 6-53-105, is amended by adding the following new subsection:

(d) An amendment to the charter of a home rule municipality shall not be placed on any ballot if the amendment is in violation of the Constitution or state law.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.